

#	Case Name	Tentative
53.	Rubicon Builders & Development, Inc. v. McCann 2025-0150778	Plaintiff Rubicon Builders & Development, Inc.'s unopposed motion to compel arbitration and stay proceedings is GRANTED. (Code Civ. Proc. §§ 1281.2 and 1281.4.) In light of the Court's ruling on Rubicon's motion to compel arbitration in the related matter McCann v. Rubicon Builders & Development, Inc. (OCSC Case No. 30-2025-01488820), Plaintiff and Defendant in this matter are hereby ORDERED to submit the claims alleged here to binding arbitration consistent with the Construction Services Agreement attached to Plaintiff's motion as Exhibit A, as modified in the ruling compelling arbitration in the related case. The Court excepts from this order to arbitrate Plaintiff's claims concerning a mechanic's lien. As it relates to Plaintiff's claims concerning the mechanic's lien, those claims are STAYED pending the conclusion of the arbitration, or further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. Plaintiff shall provide notice of this ruling.
54.	Cacak v. HB Healthcare Associates LLC 2025-01454745	Defendants HB Healthcare Associates LLC (HB Healthcare) and Sandpiper Senior Living LLC's (Sandpiper) (together, the Sea Cliff defendants) motion to compel arbitration is DENIED. (See Code Civ. Proc., § 1281.2.) <u>Subject arbitration agreements.</u> This motion has been brought pursuant to two separate arbitration agreements: (1) HB Healthcare's arbitration agreement with plaintiff Harold L. Cacak (plaintiff) dated 6/15/23, which the parties refer to as the "Sea Cliff SNF Agreement" (Apolinar Decl. at Ex. A); and (2) Sandpiper's arbitration agreement with plaintiff dated 8/1/23, which the parties refer to as the "Sea Cliff RCFE Agreement" (Clark Decl. at Ex. B). Although the Sea Cliff defendants have brought this motion together, each defendant seeks to compel arbitration pursuant to its own arbitration agreement with plaintiff. <u>The California Arbitration Act applies.</u> Defendants have brought this motion pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA). (See Mtn.